

Stereo. HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 21725/2021

Madiha Ammad

Vs.

The State etc.

JUDGMENT

Date of hearing	15.11.2022
For the Petitioner:	Mr. Tayyab Naveed Malik, Advocate.
For Respondents No.2 & 3:	Mr. Mukhtar Ahmad Ranjha, Additional Advocate General, with Maqsood/ASI.
For Respondents No.4 to 9:	Rana Abdul Majeed Khan, Advocate.

Tariq Saleem Sheikh, J. – This petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), seeks annulment of the order dated 8.3.2021 passed by the Judicial Magistrate, Sheikhupura (the “Impugned Order”), whereby he concurred with the police report and cancelled FIR No. 507/2020 dated 25.11.2020 registered at Police Station Saddar Farooq-Abad, District Sheikhupura, for an offence under section 382 PPC.

The facts

2. The Petitioner lodged FIR No. 507/2020, *supra*, alleging that on 4.7.2020 at about 6:00/7:00 p.m. Respondents No. 4 to 9 and 8/10 unknown persons, while armed with different weapons, committed theft and took away various articles worth Rs.1,028,800/- from her house. Maqsood Ahmad/ASI investigated the case. He concluded found that Respondents No. 4 to 9 had committed the offence and documented his findings in Case Diary No. 11 dated 13.1.2021. The accused applied to the District Police Officer, Sheikhupura, for a change of investigation, which he referred to the District Standing Board under Article 18-A(1) of the Police Order, 2002 (the “Police Order”), and granted it on its recommendation. Subsequently, Muhammad Irfan Gul/S.I. re-investigated the matter and determined that the Petitioner’s

case was false. On 25.2.2021, the SHO of Police Station Saddar Farooq-Abad submitted the cancellation report to the Judicial Magistrate who concurred with it vide Impugned Order dated 8.3.2021.

3. The Petitioner alleged that Muhammad Irfan Gul/S.I. was dishonest so she made an application to the Regional Police Officer, Sheikhpura Range, vide Diary No. 63-CCR-DIG dated 13.2.2021, for the second change of investigation. The RPO referred that application to the Regional Standing Board for opinion in terms of Article 18-A(2) of the Police Order vide Diary No. 79-CCR-DIG dated 23.2.2021. The Board's meeting was scheduled for 9.3.2021, but Muhammad Irfan Gul/S.I. pre-empted it and deceitfully obtained the Impugned Order from the Judicial Magistrate on 8.3.2021.

The submissions

4. The Petitioner's counsel claims that there was plenty of incriminating evidence condemning the accused and that the cancellation report dated 25.2.2021 was unwarranted. According to him, Muhammad Irfan Gul/S.I. was hand in glove with the accused and dishonestly recorded findings against her. She requested the RPO for a change of investigation. Her application was pending but the police concealed that fact from the Judicial Magistrate and duped him into issuing the Impugned Order. The counsel further contends that the Judicial Magistrate could not entertain the aforesaid cancellation report because the Superintendent of Police (the "S.P.") had not countersigned it which was mandatory under Rule 24.7 of the Police Rules, 1934 (the "Police Rules"). Finally, the Impugned Order is bad in law because the Judicial Magistrate did not hear the Petitioner.

5. The Assistant Advocate General has vehemently opposed this petition. He contends that Muhammad Irfan Gul/S.I. thoroughly investigated FIR No. 507/2020 and found it false. There is no proof that he was biased or misconducted himself. He states that the SHO signed the cancellation report and the Assistant District Public Prosecutor duly forwarded it. The fact that the S.P. did not countersign it makes no difference because that was the standard practice. The Assistant Advocate General further argues that the law does not require the Judicial Magistrate to hear the complainant/

informant of FIR while considering a cancellation report so the Petitioner cannot take exception to the Impugned Order on that score.

6. The counsel for Respondents No. 4 to 9 has adopted the arguments of the Assistant Advocate General.

Discussion

7. Chapter XIV (sections 154 to 176) of the Code of Criminal Procedure (hereinafter referred to as the “Code” or “Cr.P.C.”) sets out the law for dealing with information relating to the commission of offences. Section 154 Cr.P.C. addresses cognizable and section 155 non-cognizable offences. Section 155(2) prohibits a police officer from investigating a non-cognizable case without a Magistrate’s order while Section 156 confers extensive powers on him concerning cognizable offences. A police officer in-charge of a police station can investigate such offences even without a Magistrate’s order. Section 156(3) allows any Magistrate authorized under section 190 to order an investigation. When a cognizable offence is suspected, the officer in-charge of a police station, after sending a report to the Magistrate, has the authority under section 157 to investigate the facts and circumstances of the case and take action to track and apprehend the offender. Proviso (b) to section 157(1) gives the police officer the discretion not to investigate the matter if he considers that the evidence is insufficient to warrant an investigation. Section 158 lays down the procedure for submitting reports under section 157. Section 159 empowers a Magistrate to hold an investigation or preliminary inquiry after such report or otherwise dispose of the case in accordance with the Code. Sections 160 to 163 deal with the police’s authority to summon witnesses and examine and record their statements. Sections 165 and 166 deal with the power of police officers to conduct searches during an investigation in specified circumstances. Section 167 stipulates the procedure the police must follow if they cannot complete the investigation within 24 hours. Section 168 states that if a subordinate police officer investigates a matter, he must communicate the result to the officer in-charge of a police station. Section 169 allows a police officer investigating a crime to release an accused from custody when there is insufficient evidence against him, provided that he executes a bond to appear before a Magistrate, if and when required. Section 170 ordains the

officer in-charge of a police station to send up the accused person in custody to the competent Magistrate for trial if sufficient incriminating evidence is gathered against him during the investigation under Chapter XIV. If the offence is bailable and the accused can furnish security, he should accept it for his appearance before the Magistrate. Section 172 obligates the police officer investigating a case to maintain a diary recording certain details in a specified manner. Section 173 mandates the investigation be completed without undue delay and directs the officer in-charge of the police station to submit a report to the Magistrate concerned (through the public prosecutor) within the time frame and the format prescribed by the Provincial Government.

8. The Code does not contain any specific provision for cancelling criminal cases. However, in **Wazir v. The State** [PLD 1962 (W.P) Lahore 405], a Full Bench of this Court held that the power of cancellation of FIR is inherent in section 173 read with section 190 of the Code. The relevant excerpt reads as under:

“We were told by learned counsel for the respondent that the cancellation could not be under sub-section (3) of section 173 and that apart from that sub-section there was no other provision which enabled a Magistrate to cancel a case. Sub-section (3), he argued, was applicable to a case where the accused had been released on his bond under section 169, which provides that if it appears to the police officer that there is not sufficient evidence to justify the forwarding of the case to a Magistrate, such officer shall release the accused on a bond requiring him to appear before a Magistrate empowered to take cognizance of the offence and to try the accused or to commit him for trial. If this argument is accepted, then, in the event of an omission by the police officer to release the accused on a bond, the Magistrate will not be empowered to discharge the accused or to cancel the case even if the police officer had reported that there was no sufficient evidence against the accused. We think that such power is inherent in section 173 read with section 190 of the Code of Criminal Procedure, though the language of sub-section (3) does not directly apply to the case.”

The Hon’ble Supreme Court of Pakistan approved the above holding in **Bahadur and another v. The State and another** (PLD 1985 SC 62).

9. Rules 24.7 and 25.7 of the Police Rules lay down the procedure for cancelling criminal cases. These are reproduced below for ready reference:

24.7. Cancellation of cases.— Unless the investigation of a case is transferred to another police station or district, no first information report can be cancelled without the orders of a Magistrate of the Ist Class.

When information or other intelligence is recorded under section 154, Criminal Procedure Code, and, after investigation, is found to be maliciously false or false owing to a mistake of law or fact or to be non-cognizable or matter for a civil suit, the Superintendent shall send the first information report and any other papers on record in the case with the final report to a Magistrate having jurisdiction and being a Magistrate of the first class, for orders of cancellation. On receipt of such an order the officer in-charge of the police station shall cancel the first information report cancelling the case with the number and date of order. He shall then return the original order to the Superintendent's office to be filed with the record of the case.

25.7. Cancellation of a case in one police station and registration in another.— When a case is transferred from one police station to another, the offence registered in the original police station shall be cancelled by the Superintendent and a first information report shall be submitted from the police station in the jurisdiction of which the case occurred.

Chapter 11, Part-D of Volume III of the Lahore High Court Rules & Orders supplements the above provisions.

10. Rule 25.57 deals with closing the investigation and the final report. Sub-rule (3), which has some relevance to the discussion, is reproduced hereunder:

(3) If the informant is present when the final report is prepared, he shall be informed verbally of the result of the investigation, and, after noting this fact in the final report, his signature or thumb mark shall be taken on it. If the informant is not present, he shall be informed in writing by postcard or by the delivery of a notice by hand, and the fact that this has been done shall be noted in the final report.

In final (untraced or cancelled) reports the facts of the case which the investigating officer believes to be correct should be summarized, together with the grounds for his belief. Information so recorded should be utilized for the completion of preventive records.

11. It is important to note that the expression “cancellation report” does not occur in either the Code or Police Rules. Section 173 Cr.P.C. refers to “a report,” whereas Rules 24.7 and 25.57 of the Police Rules use the phrase “final report.” The High Court Rules & Orders, *supra*, use the same terminology. However, sections 9, 12 & 13 of the Punjab Criminal Prosecution Service (Constitution, Functions and Powers) Act, 2006, employ the wording “a report for cancellation of the first information report.” The Rule 10 of the Punjab Anti-Corruption Establishment Rules, 2014, includes the phrase “cancellation report.”

12. Rule 24.7 outlines the grounds and procedure for cancelling a criminal case. Except where the investigation is transferred to another police station or district (in which case Rule 25.7 applies), only the Magistrate of the Ist Class can cancel the FIR by an order. Rule 24.7 requires the S.P. to submit the cancellation report to the Magistrate. Although this Rule uses the word “shall”, which generally indicates that the provision is mandatory, we need to examine it in light of the principle laid down in ***Province of the Punjab through Conservator of Forest, Faisalabad, and others v. Javed Iqbal*** (2021 SCMR 328). The Hon’ble Supreme Court has held that the court should carefully review the statute’s scheme. The ultimate test for determining whether a provision is directory or mandatory is the legislature’s intent, not the language used to express that intent. The object and purpose of enacting the provision provide a strong and clear indicator of that intent. Therefore, the court should consider the phraseology of the provision and its nature, the object, and the consequences of construing it one way or the other. A crucial factor is whether non-compliance with a specific provision causes inconvenience or injustice. If it does, the court will hold that the provision is mandatory.

13. Investigation is a vital component of the criminal justice system and the rule of law. The police must unearth the truth, collect all available evidence on indictable conduct and locate the person suspected of a violation. The purpose of Rule 24.7 for requiring the S.P. to submit the cancellation report to the Magistrate is to provide a mechanism for checking genuine lapses and misconduct on the part of the investigating officer. Since the case closes when the Magistrate concurs with the cancellation report, that oversight is critical. Rule 24.8 obligates the S.P. to keep a register of cognizable offences in the prescribed form and discharge various tasks in connection therewith. All these factors when considered in conjunction with the language of Rule 24.7 clearly show that it is mandatory.

14. At this juncture, it is necessary to refer to the Punjab Police Order (Amendment) Act, 2013, which introduced various amendments to the Police Order, 2002. The newly-added Article 18(10) stipulates that “a supervisory officer not below the rank of a Deputy Superintendent of Police may verify the correctness of the investigation and accuracy of conclusions of an investigation by writing a case diary before submission of

report in the court.” The term “verify” has not been defined in the Police Order so we look at its dictionary meaning in the first instance. According to *P. Ramanatha Aiyar’s Advanced Law Lexicon Dictionary* (4th Edition, Vol.4), “verify” means “to assent or approve to be true; to ascertain, confirm or test the truth or accuracy of. In *Words and Phrases* (Permanent Edition, Volume 44, p.251), the word “verify” is defined as “confirm or substantiate by oath and also to check or test accuracy or exactness of or to confirm or establish authenticity of”. Similarly, the *Concise Oxford Dictionary* defines “verification” as “the process or an instance of establishing the truth or validity of something, or to verify truth or correctness by examination or demonstration.” The expression “verification” and its scope came up for discussion before a Full Bench of this Court in ***Khizer Hayat and others v. Inspector-General of Police (Punjab), Lahore and others*** (PLD 2005 Lahore 470) with reference to Article 18(6) of the Police Order as it was on the statute book at that time. The Court ruled:

“It has come to our notice in some other cases that police officers other than those mentioned in Article 18(6) of the Police Order, 2002 have been changing investigation of criminal cases in the name of ‘verification’ of the investigation. It may be clarified by us that the law is quite settled on the point that where the law requires a thing to be done in a particular manner then that thing must be done in that manner alone or not at all. In any case, if an investigation by an investigating officer is to be verified by some other officer then such verification must be confined to verification of the record of the investigation and such an exercise cannot be allowed to be conducted in a manner giving it a colour of a fresh investigation with fresh conclusions. The verifying officer has to confine himself to the record of the investigation already conducted and cannot substitute his own conclusions for those of the investigating officer, and if he finds any serious fault with the investigation already conducted, then the verifying officer can bring such fault to the notice of the Superintendent of Police (Investigation) of the concerned district who can then initiate the process contemplated by the provisions of Article 18(6) of the Police Order, 2002 for change of investigation.”

15. The above quotation clearly shows that the authority given to the “supervisory officer” under Article 18(10), *supra*, has a different connotation. Its purpose is to raise the level of oversight of the investigating officers to improve the quality of the investigation. In contrast, Rule 24.7 of the Police Rules comes into play when the investigation is completed and the officer in-charge of the police station prepares to cancel the FIR. That is a crucial stage in which the law provides a second check at the level of S.P. to ensure justice.

16. In the present case, it is observed, the SHO submitted the cancellation report dated 25.2.2021 before the Judicial Magistrate. The S.P. neither signed nor countersigned nor forwarded it. In view of what I have discussed above, the said submission was illegal and without lawful authority. The argument that it was valid according to the departmental practice is not tenable. The Assistant District Public Prosecutor's recommendation also does not cure the defect.

17. Now, I take up the Petitioner's contention regarding the right of hearing.

18. In *Bahadur*,¹ the Hon'ble Supreme Court was called upon to determine whether the Magistrate acts as a court when he cancels a criminal case. It held that he works in an administrative capacity. The relevant excerpt is as follows:

"Though a Magistrate in cancelling a registered criminal case is required to act judicially in that he has to act fairly, justly and honestly, a duty common to the exercise of all state power, there is no *lis* before him, there is no duty to hear the parties, there is no decision given, no finality or irrevocability attaching to the order. The party is left free to institute a complaint on the same facts, and the same Magistrate does not even after passing such an order render himself *functus officio*. On the contrary, he is quite competent to entertain and deal with such a complaint on the material presented to him. These peculiarities establish beyond doubt that in so concurring with a report submitted under section 173 Cr.P.C. he does not function as a criminal Court. For that reason, his order is not amenable to the revisional jurisdiction under sections 435 to 439 Cr.P.C."

(underlining is mine)

19. *Bahadur* is generally cited for the proposition that the complainant of the FIR is not entitled to a hearing before the Magistrate when the police submit the cancellation report to him. However, it should be appreciated that the Hon'ble Supreme Court made the above-highlighted observations in a specific context. A Magistrate performs several functions under the Code and in *Bahadur* the Court considered the nature of one of those functions. It was not called upon to determine whether the complainant had a right to a hearing at the above stage. As a result, that question is still unanswered. Another significant point is that the apex Court decided *Bahadur* before the insertion of Article 10A in the Constitution. Hence, the impact of that development also requires examination.

¹ PLD 1985 SC 62

20. Article 10A of the Constitution mandates that “for the determination of his civil rights and obligations or in any criminal charge against him, a person shall be entitled to a fair trial and due process.” In ***Suo Motu Case No. 4 of 2010*** (PLD 2012 SC 553), the Hon’ble Supreme Court of Pakistan held that our courts have long acknowledged and recognized the right to a fair trial but Article 10A has elevated it to a higher pedestal. Consequently, any law, custom, or usage having legal force which conflicts with the right to a fair trial is null and void under Article 8 of the Constitution. The Supreme Court pointed out that because the legislature did not define or describe the requisites of a fair trial in Article 10A, it was most likely that it intended to give it the same meaning as is universally recognized and established in our jurisprudence.

21. Most constitutions in today’s world guarantee the right to a fair trial, but few describe its components. In ***Ibrahim and others v. The United Kingdom***, [G.C., 2016, § 250], the European Court of Human Rights held that a single inflexible rule could not define a fair trial. It must depend on the circumstances of each case. It is necessary to consider how the case progressed as a whole rather than focusing on a particular aspect or incident. Nevertheless, one factor could be so important at times that it may be enough to show that fairness was compromised. Article 6 of the European Convention² enumerates the minimum requirements of a fair trial regarding

² Article 6 of the European Convention on Human Rights provides:

Article 6: Right to a fair and public hearing.— (1) In the determination of his civil rights and obligations or of any criminal charge against him, everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law. Judgment shall be pronounced publicly but the press and public may be excluded from all or part of the trial in the interest of morals, public order or national security in a democratic society, where the interests of juveniles or the protection of the private life of the parties so require, or to the extent strictly necessary in the opinion of the court in special circumstances where publicity would prejudice the interests of justice.

2. Everyone charged with a criminal offence shall be presumed innocent until proved guilty according to law.

3. Everyone charged with a criminal offence has the following minimum rights:

- (a) to be informed promptly, in a language which he understands and in detail, of the nature and cause of the accusation against him;
- (b) to have adequate time and facilities for the preparation of his defence;
- (c) to defend himself in person or through legal assistance of his own choosing or, if he has not sufficient means to pay for legal assistance, to be given it free when the interests of justice so require;
- (d) to examine or have examined witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him;
- (e) to have the free assistance of an interpreter if he cannot understand or speak the language used in court.

the procedural issues that commonly arise in criminal cases. Even though these minimum rights are not ends in and of themselves, they contribute to the fairness of the criminal proceedings. In evaluating the overall fairness of the proceedings, the court will consider whether those rights were available to the accused.

22. When we talk of the right to a fair trial in criminal cases, we generally have the accused in mind. It is, however, equally the right of the victim and society. In ***Zahira Habibulla H. Sheikh and another v. State of Gujarat and others*** (AIR 2004 SC 3114), the Supreme Court of India held:

“... crimes being public wrongs in breach and violation of public rights and duties, which affect the whole community as a community and harmful to the society in general. The concept of a fair trial entails familiar triangulation of interests of the accused, the victim and the society and it is the community that acts through the State and prosecuting agencies. Interests of the society is not to be treated completely with disdain and as *persona non grata* ... It will not be correct to say that it is only the accused who must be fairly dealt with. That would be turning Nelson's eyes to the needs of the society at large and the victims or their family members and relatives. Each one has an inbuilt right to be dealt with fairly in a criminal trial. Denial of a fair trial is as much injustice to the accused as is to the victim and the society.”

23. Procedural fairness is integral to the right to a fair trial. Professor D.J. Galligan writes:

“Due process and procedural fairness go together, but it is not always clear whether they mean the same thing or what the differences between them are. The notion of Due Process has been associated with certain doctrines, both substantive and procedural, arising under the American Constitution, while procedural fairness is more at home in the British context, although even here the term commonly used until recently was ‘natural justice’ ... Although Due Process now has American connotation, its origins are in the early common law.”³

24. Procedural fairness is linked to the concept of procedural justice.⁴ Some scholars believe that these terms are synonymous. In the context of court proceedings, it means that “those who come to the court form perceptions of fairness from the proceedings, from the surroundings, and from the treatment people get ... Perceptions of procedural fairness lead to greater acceptance of court rulings, a more positive image of individual

³ D.J. Galligan, *Due Process and Fair Procedure* (1996), p. 73

⁴ Marta Klopocka-Jasinka, *Editorial of the dossier “The role of constitutional courts in shaping procedural fairness in criminal cases – Constitutionalisation of the right to a fair criminal trial as a process inspired by constitutional courts.”* Available at: <https://www.scielo.br/j/rbdpp/a/w9zzfDwvbWRzbYHTMXxf6RB/?format=pdf&lang=en>

courts and the justice system, and increased compliance with court orders.”⁵ Researchers sometimes identify different elements of procedural fairness, but the following are the most commonly noted: (i) neutrality, (ii) transparency, (iii) opportunity of the voice (allowing litigants to participate in the proceedings and express their viewpoints), and (iv) respect for the litigants. A scholar writes:

“According to the procedural justice theory, the conclusion that the entire procedure is “fair” largely depends on the assessment of the procedure and its course rather than on its ultimate outcome. The emergence and development of the concept of procedural justice in contemporary research streams are often associated with features of a modern pluralistic society in a democratic state based on the rule of law. Nowadays, procedural justice goes beyond the limits of instrumentalisation and must correspond to certain principles and realise certain values such as human dignity, the principle of equality, the exclusion of certain measures regardless of their effectiveness but also the principle of procedural efficiency. From that perspective, judicial procedures must reflect constitutional axiology, conform to the principles and values enshrined in the constitution and respect human rights.”⁶

25. De Smith states that procedural fairness “is no longer restricted by distinctions between ‘judicial’ and ‘administrative’ functions or between ‘rights’ and privileges’. This ‘heresy was scotched’ in *Ridge v. Baldwin*. The term ‘natural justice’ has largely been replaced by a general duty to act fairly, which is a key element of procedural propriety. On occasion, the term ‘due process’ has also been invoked. Whichever term is used, the entitlement to fair procedures no longer depends upon the adjudicative analogy, nor whether the authority is required or empowered to decide matters analogous to legal action between two parties.”⁷ According to De Smith, the law has evolved, and the said rule is now subject to the well-established exceptions only.

26. The Privy Council held in ***Public Service Commission v. Ceron Richards***, [2022] UKPC 1, that fairness is another name for natural justice. The context in which the power arises and the circumstances under which it is to be exercised determine what fairness requires. The Privy Council also cited with approval the following statement of Lord Mustill from ***Regina v. Secretary of State for the Home Department***, [1994] 1 AC 531:

⁵ Procedural fairness/Procedural Justice: A Bench Card for Trial Judges. Available at: <https://www.courtinnovation.org/sites/default/files/media/document/2018/PJ-Bench-Card-for%20Trial%20Judges%20-%20AJA%202018.pdf?cv=1>

⁶ See note 4, *ibid*.

⁷ De Smith’s Judicial Review, Seventh Edition, pp. 385-6.

“The principles of fairness are not to be applied by rote identically in every situation. What fairness demands is dependent on the context of the decision, and this is to be taken into account in all its aspects. An essential feature of the context is the statute which creates discretion, as regards both its language and the shape of the legal and administrative system within which the decision is taken.”

27. Article 4 of our Constitution guarantees an inalienable right to enjoy the protection of the law and to be treated in accordance with the law. In ***Faisal Sultan v. EDO (Education) and others*** [2011 PLC (C.S) 419], this Court held that procedural due process, the right to be treated fairly at all times, procedural fairness, and procedural propriety are the integral, intrinsic, and incidental components of "law" under Article 4. In ***Maqbool Ahmad and four others v. District Officer (Revenue)/District Collector, Faisalabad, and three others*** (2011 PLJ Lahore 455), this Court ruled that even encroachers, trespassers, and squatters have an inalienable right to equal legal protection. They have this right under Article 4 of the Constitution, just like everyone else in the country, which nobody can take away. The learned Judge further said: “Article 4 of the Constitution is our ‘Due Process Clause’. The protection of the law or being treated according to it carries a basket of legal principles. Therefore, the principles of natural justice, fairness, procedural propriety, procedural due process, reasonableness, transparency, openness, participation, inclusiveness are all embedded in Article 4, which is, therefore, a citadel of administrative and judicial governance in the country.” In ***Shabbir Ahmed v. Kiran Khursheed and others*** (2012 CLC 1236), this Court discussed the significance of Article 10A. It held that it transforms Article 4 into a more robust fundamental right and encompasses substantive and procedural due process. Substantive due process safeguards constitutionally granted liberty and serves as a check on the exercise of legislative power. On the other hand, the procedural due process holds that a person must be given a specific “process” before taking any action detrimental to his life, liberty, or property. Due process is now available as a fundamental right to every person and emphasizes procedural fairness in determining his civil or criminal rights. At every point, the procedure used to determine the parties’ rights must pass the test of fairness and procedural propriety. It must always respect the law and established legal principles. Article 10A is not limited to

a judicial trial in its strict sense but requires fairness from any forum that determines the rights of a person.

28. The complainant/informant in a criminal case does not fade away after the FIR is registered. He is deeply concerned about the response of the officer in-charge of the police station to the FIR. Section 157(2) requires the officer in-charge of a police station to notify the complainant if, despite the FIR, he decides not to investigate the case on the ground there is insufficient evidence to warrant an investigation. Section 173 directs the officer in-charge of a police station to complete the investigation without undue delay and to forward a report (through the Public Prosecutor) to the Magistrate competent to take cognizance of the offence, while also communicating his action on the FIR to the complainant. The rationale behind this provision is that the person who starts the investigation machinery in motion by filing FIR must know the outcome of the investigation. The complainant is also keenly interested in the result of the investigation because if the case is false, he may face prosecution under section 182 PPC and civil litigation.

29. In view of the above, the complainant of FIR has a right to know the progress of the case unless the authorities have a legitimate reason to keep the information confidential. If they go for its cancellation, he has the right to be informed and heard by the Magistrate. The complainant derives these rights under Article 4 and Article 10A of the Constitution, which includes the concept of procedural fairness. Whether a cancellation report constitutes an adverse order or not is irrelevant.

30. This opinion has primarily focused on the rights of a complainant of FIR in relation to its cancellation because one such person has filed this petition. Procedural fairness implies equity for all. Hence, I must emphasize that the accused also has a right to be heard before the Magistrate when he decides on the cancellation report.

31. In the present case, the Petitioner has been denied the right to contest the cancellation report dated 25.2.2021. That renders the Impugned Order unlawful.

32. The Petitioner has submitted documents reflecting that on 13.2.2021 she applied to the RPO, Sheikhpura Range, for a second

investigation change. On 23.2.2021, the RPO referred it to the Regional Standing Board for recommendations, as required by Article 18-A(2) of the Police Rules, and it was scheduled to be put before it on 9.3.2021. Undoubtedly, if the Judicial Magistrate had known this fact, he would have waited for the outcome of that application before passing any order on the cancellation report.

33. It is the sacred duty of the Magistrate to protect the people's rights. He must apply his mind to the facts and circumstances of the case while deciding on the cancellation report. He must be honest, fair, and just to both the accused and the prosecution. To that end, he must *inter alia* consider the following factors: (a) the nature of the allegations against the accused, (b) the evidence collected, and (c) the accused's defence plea and any evidence presented in support thereof. Besides, the Magistrate should thoroughly examine the police diaries and document his reasoning. In this case, it is disappointing that the Judicial Magistrate treated the cancellation report casually and nonchalantly. The Impugned Order is bereft of reasoning and does not reflect due application of the mind.

Disposition

34. This petition is disposed of in the following terms:

- i) the Impugned Order dated 8.3.2021 is set aside and the matter is remanded to the Judicial Magistrate;
- ii) the Petitioner's application before the RPO for a second change of investigation shall be deemed to be pending and he shall decide it after obtaining the opinion of the Regional Standing Board in accordance with law; and
- iii) the Judicial Magistrate shall pass a fresh order on the cancellation report after the RPO decides the Petitioner's above-mentioned application.

(Tariq Saleem Sheikh)
Judge

Naeem

Approved for reporting

Judge